

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #14	CCRB Case #: 201609232	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 11/01/2016 1:00 PM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 5/1/2018	Precinct: 120		
Date/Time CV Reported Fri, 11/04/2016 2:49 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/04/2016 2:49 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brad Parascandolo	09164	953216	120 PCT
2. POM Jason Portee	20435	945283	120 PCT
3. POM Richard Browne	00352	950113	120 PCT
4. POM Vincent Tortorella	17287	959312	120 PCT
5. POM Frank Desiderato	13351	936473	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brad Parascandolo	Force: Police Officer Brad Parascandolo used physical force against § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Richard Browne	Force: Police Officer Richard Browne used physical force against § 87(2)(b)	B . Exonerated
C . POM Vincent Tortorella	Force: Police Officer Vincent Tortorella used physical force against § 87(2)(b)	C . Exonerated
D . POM Jason Portee	Force: Police Officer Jason Portee used physical force against § 87(2)(b)	D . Exonerated
E . POM Frank Desiderato	Abuse: Police Officer Frank Desiderato entered § 87(2)(b) in Staten Island.	E . Exonerated
F . POM Richard Browne	Abuse: Police Officer Richard Browne entered § 87(2)(b), in Staten Island.	F . Exonerated
G . POM Frank Desiderato	Force: Police Officer Frank Desiderato used physical force against § 87(2)(b)	G . Unsubstantiated
H . POM Richard Browne	Force: Police Officer Richard Browne used physical force against § 87(2)(b)	H . Unsubstantiated
I . POM Brad Parascandolo	Abuse: Police Officer Brad Parascandolo entered § 87(2)(b), in Staten Island.	I . Exonerated
J . POM Brad Parascandolo	Force: Police Officer Brad Parascandolo used physical force against § 87(2)(b)	J . Unsubstantiated
K . POM Brad Parascandolo	Abuse: Police Officer Brad Parascandolo searched § 87(2)(b), in Staten Island.	K . Exonerated

Officer(s)	Allegation	Investigator Recommendation
L . POM Richard Browne	Abuse: Police Officer Richard Browne searched § 87(2)(b) in Staten Island.	L . Exonerated

Case Summary

On November 1, 2016, at approximately 1:00 p.m., inside an apartment building located at § 87(2)(b) in Staten Island, Police Officer Brad Parascandolo and Police Officer Richard Browne of the 120th Precinct had completed a vertical patrol of the building after an armed robbery had recently occurred in the area. Police Officer Parascandolo and Police Officer Browne were preparing to exit through the lobby when they observed an individual, § 87(2)(b) about to enter. Police Officer Parascandolo and Police Officer Browne recognized § 87(2)(b) as a wanted individual in the 120th Precinct for a prior incident, and immediately ordered him to stop and attempted to place him under arrest. After a brief struggle, wherein both officers observed a firearm in § 87(2)(b)'s waistband, § 87(2)(b) escaped and fled from § 87(2)(b) ran around the corner, and entered into § 87(2)(b) with Police Officer Parascandolo and Police Officer Browne in pursuit. Police Officer Parascandolo and Police Officer Browne watched § 87(2)(b) run into an apartment on the first floor and then called over the radio requesting additional units to respond to the new location at § 87(2)(b).

While waiting in the first floor hallway after placing the call over the radio, Police Officer Parascandolo and Police Officer Browne were approached by an individual, § 87(2)(b) from behind. After a brief argument and physical contact with § 87(2)(b) Police Officer Parascandolo and Police Officer Browne attempted to place § 87(2)(b) under arrest. § 87(2)(b) physically resisted being placed in custody and a struggle ensued, wherein Police Officer Parascandolo fell to the ground. In the midst of the struggle, Police Officer Vincent Tortorella and Police Officer Jason Portee of the 120th Precinct arrived to § 87(2)(b) and, after observing § 87(2)(b) resisting arrest, the officers approached the group and physically assisted with the arrest. It is alleged that to effect § 87(2)(b)'s arrest, Police Officer Parascandolo, Police Officer Browne, Police Officer Tortorella, and Police Officer Portee forcibly took him to the ground and struck him repeatedly (**Allegations A, B, C, and D**).

§ 87(2)(b) After § 87(2)(b) had been successfully placed under arrest, Police Officer Frank Desiderato of the 120th Precinct arrived to the first floor of § 87(2)(b) in response to the radio call. Police Officer Desiderato and Police Officer Browne repeatedly knocked on the door of § 87(2)(b) where § 87(2)(b) was hiding inside. After a few minutes, § 87(2)(b) opened the door and was forcibly taken to the apartment floor by Police Officer Desiderato and Police Officer Browne (**Allegations E and F**), wherein it is alleged that the officers slammed his head against the floor, put their knees into his neck and back, and struck him two to three times in the head (**Allegations G, H, and J**).

After § 87(2)(b) had been placed under arrest, Police Officer Parascandolo entered into the apartment (**Allegation I**). When neither he nor the other officers could locate § 87(2)(b) the officers secured the location and placed a call to the Strategic Response Group to extract § 87(2)(b). After § 87(2)(b) surrendered and was placed into custody, Police Officer Parascandolo and Police Officer Browne left the scene to obtain a search warrant. After receiving the search warrant, Police Officer Parascandolo and Police Officer Browne returned to § 87(2)(b) and searched the interior of § 87(2)(b) (**Allegations K and L**), where they located contraband, stolen property, and a firearm. § 87(2)(b) and § 87(2)(b) were arrested as a result of this incident.

Although § 87(2)(b) is a NYCHA building with security cameras, no video footage was found as the cameras on the first floor were not in the vicinity of the incident.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation due to civilians' arrests.
- The § 87(2)(b) Law Group has filed a Notice of Claim on behalf of § 87(2)(b) and has scheduled a 50-H hearing for § 87(2)(a) Gen.Mun. (Board Review 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has no prior CCRB complaints.
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- Police Officer Parascandolo has been a member of the NYPD for four years and has had six allegations within two cases with no substantiated allegations (see officer history). § 87(2)(g)
- Police Officer Browne has been a member of the NYPD for five years and has had 11 allegations within four cases with one substantiated allegation in one case. In CCRB case #201504300, a search allegation was substantiated against Police Officer Browne and he received formalized training (see officer history). § 87(2)(g)
- Police Officer Portee has been a member of the NYPD for nine years and has had seven allegations within six cases with no substantiated allegations (see officer history). § 87(2)(g)
- Police Officer Tortorella has been a member of the NYPD for one year. This is the first

CCRB complaint against Police Officer Tortorella.

- Police Officer Desiderato has been a member of the NYPD for 12 years and has had 20 allegations in six cases with one substantiated allegation (see officer history). In CCRB case # 201308743, an allegation of force was substantiated against Police Officer Desiderato and he received charges; however, at his APU trial he was found not guilty and received no penalty.

§ 87(2)(g)

Potential Issues

§ 87(2)(b) and § 87(2)(b) did not provide sworn statements on the advice of their attorneys, as their criminal cases are still open. Additionally, § 87(2)(b) and § 87(2)(b) witnesses to the part of the incident concerning § 87(2)(b) only provided phone statements.

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer ID

§ 87(2)(b) was only provided a partial telephone statement (Board Review 08). He stated that the thinner of the two plain clothes officers with whom he initially interacted in the first floor hallway of § 87(2)(b) charged at him and struck him in the face with a closed fist. § 87(2)(b) alleged that it was the thinner officer's hand strike to his face which caused the laceration to his chin § 87(2)(b). Police Officer Parascandolo denied using any force; § 87(2)(g)

§ 87(2)(b) alleged that officers tackled him to the ground, slammed his head against the ground, and struck him repeatedly. He described the first officer who tackled him as a white male, who stood approximately 5'9" tall, was "built" in reference to his body type, had brown hair, and was in uniform. § 87(2)(b) described the second officer as a white male, who stood approximately 6'1" tall and had a heavy build, wore a black, bullet-proof vest, a black-and-white baseball cap, and blue jeans. § 87(2)(b) description of the uniformed officer's physical characteristics matches that of Police Officer Parascandolo. However, Police Officer Parascandolo, Police Officer Desiderato, and Police Officer Browne were all dressed in plain clothes, not in uniform. No other uniformed officer was listed in the subsequent TRI report (Board Review 18) or ISAR (Board Review 05) as being involved in the force used to effect § 87(2)(b)

§ 87(2)(b) arrest, § 87(2)(g)

Allegations not pleaded

- **Abuse of Authority:** § 87(2)(b) the mother of § 87(2)(b) and a non-witnessing complainant, alleged in a phone statement that an officer threw her dog out of her apartment window (Board Review 06). § 87(2)(b) also made this allegation in his phone statement (Board Review 07). However, in § 87(2)(b) sworn statement, he did not allege that any officer threw a dog out of the window, and furthermore, made no mention of a dog at all. All the officers interviewed in this case denied the presence of a dog during the incident and denied that any officer threw a dog out a window § 87(2)(g).
§ 87(2)(b).

Allegation A—Force: Police Officer Brad Parascandolo used physical force against § 87(2)(b)

As discussed in the Explanation of Subject Officer ID section above, § 87(2)(b) alleged that Police Officer Parascandolo struck him in the face with a closed fist, causing a laceration to his chin. Meanwhile, Police Officer Parascandolo denied using force against § 87(2)(b).

§ 87(2)(g)
It is therefore recommended that Allegation A be closed as **victim uncooperative**.

Allegation B—Force: Police Officer Richard Browne used physical force against § 87(2)(b)

Allegation C—Force: Police Officer Vincent Tortorella used physical force against § 87(2)(b)

Allegation D—Force: Police Officer Jason Portee used physical force against § 87(2)(b)

In his phone statement, § 87(2)(b) also alleged that he was thrown to the ground and “repeatedly hit by everyone.” However, he did not provide additional details. Although § 87(2)(b) did not provide a sworn statement, Police Officer Parascandolo, Police Officer Browne, Police Officer Tortorella, and Police Officer Portee provided accounts of this force.

Police Officer Parascandolo stated that after he and his partner, Police Officer Browne, had pursued § 87(2)(b) into § 87(2)(b) and observed him enter into § 87(2)(b) they were “attacked from behind” by § 87(2)(b) (Board Review 09). Police Officer Parascandolo stated that § 87(2)(b) approach him and stated, “I should kill you guys,” and “stop harassing my brother.” Police Officer Parascandolo stated that he and Police Officer Browne attempted to place § 87(2)(b) in handcuffs; however, § 87(2)(b) refused to be handcuffed, and began fight with the officers. Police Officer Parascandolo stated that § 87(2)(b) threw punches at him and his partner, pulled on their clothes, and ultimately brought Police Officer Parascandolo to the ground. Police Officer Parascandolo said other officers physically engaged § 87(2)(b) and got him into cuffs.

§ 87(2)(g)
Police Officer Browne said § 87(2)(b) approached the officers in the first floor hallway and pushed Police Officer Parascandolo. Once § 87(2)(b) had physically engaged Police Officer Parascandolo, Police Officer Browne stated that he was considered to be under arrest. Police Officer Browne stated that § 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegations B, C, and D** be exonerated.

Allegation E—Abuse of Authority: Police Officer Frank Desiderato entered § 87(2)(b) in Staten Island.

Allegation F—Abuse of Authority: Police Officer Richard Browne entered § 87(2)(b) in Staten Island.

Allegation I—Abuse of Authority: Police Officer Brad Parascandolo entered § 87(2)(b) in Staten Island.

In his sworn statement to the CCRB (Board Review 15), § 87(2)(b) said he was sitting in his apartment at 1:00 p.m. when his friend § 87(2)(b) arrived, asked to borrow something § 87(2)(b) could not remember what), and then left. Approximately 20 minutes later, § 87(2)(b) returned. He was breathing heavily and explained that police had been chasing him, but he denied that he had done anything. Officers then knocked on his door, identified themselves as police, commanded him to open to door, and explained that, “We think somebody is in your house.” This prompted § 87(2)(b) to call his mother, § 87(2)(b). After conferring with her for a few minutes, he unlocked the apartment door. Before he could open the door, the officers “flung” the door open and entered.

According to the officers, Police Officer Parascandolo and Police Officer Browne had earlier conducted a vertical patrol inside of § 87(2)(b) following a violent armed robbery where the victim was struck in the head with a firearm that occurred at § 87(2)(b). There, the officers observed § 87(2)(b) a wanted individual in the 120th Precinct, and who had personally fled from Police Parascandolo and Police Officer Browne during a previous incident involving grand larceny of an automobile. They attempted to place him under arrest. However, § 87(2)(b) physically resisted being placed under arrest and fled, running around the corner and into § 87(2)(b). He was closely pursued by Police Officer Parascandolo and Police Officer Browne. During § 87(2)(b)'s flight to the incident location, both officers observed a black firearm in § 87(2)(b)'s waistband, and they observed him enter § 87(2)(b).

Police Officer Desiderato testified that at approximately 1:30 p.m., he received a radio run requesting additional units to respond to § 87(2)(b) in regards to an individual in possession of a firearm (Board Review 16). When he arrived to the first floor hallway, § 87(2)(b) had already been placed in handcuffs. Police Officer Desiderato stated that he and Police Officer Browne knocked on the door of § 87(2)(b) multiple times, though they did not initially receive a response. Police Officer Desiderato stated that he and officers asked § 87(2)(b) who was currently inside § 87(2)(b) and if there were any weapons inside of the apartment. § 87(2)(b) answered affirmatively and told the officers that there were two individuals inside the apartment, as well as a firearm.

Police Officer Desiderato stated that he returned to the door of § 87(2)(b) and began to knock again. After a few minutes, Police Officer Desiderato stated that he heard § 87(2)(b) from inside the apartment tell him and the other officers that he was not going to come out of the apartment. Police Officer Desiderato stated that after approximately two minutes, the door of § 87(2)(b) suddenly opened and § 87(2)(b) approached him and Police Officer Browne. Police Officer Desiderato denied that he flung the door open, or witnessed any other officer force the door open.

Police Officer Browne's testimony is in agreement with Police Officer Desiderato, and he

also denied that he flung the door open, or witnessed any other officer force the door open.

Police Officer Parascandolo stated that he was standing approximately 40 to 50 feet down the first floor hallway when the door to § 87(2)(b) was eventually opened and officers entered into the residence. Police Officer Parascandolo could not specifically recall when he specifically entered into § 87(2)(b) except that it was “soon after” the first officers entered.

An officer may enter a private residence without a warrant in the presence of exigent circumstances, which are determined by a number of factors. These factors include: 1) the gravity or violent nature of the offense with which the suspect is to be charged; 2) whether the suspect is reasonably believed to be armed; 3) a clear showing of probable cause to believe that the suspect committed the crime; 4) strong reason to believe that the suspect is in the premises being entered; 5) a likelihood that the suspect will escape if not swiftly apprehended; and, 6) the peaceful circumstances of the entry. (*People v McBride*, 14 N.Y.3d 440, 928 N.E.2d 1027, 902 N.Y.S.2d 830, 2010 N.Y. LEXIS 616, 2010 NY Slip Op 3473 (N.Y. 2010)) (Board Review 17)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations E, F, and I be exonerated.

Allegation G—Force: Police Officer Frank Desiderato used physical force against § 87(2)(b)

Allegation H—Force: Police Officer Richard Browne used physical force against § 87(2)(b)

Allegation J—Force: Police Officer Brad Parascandolo used physical force against § 87(2)(b)

As mentioned in the preceding section, § 87(2)(b) stated that before he could open the door, officers flung the door open and immediately tackled him to the floor. Allegedly, an officer then slammed his head against the floor two to three times, put his knee into his neck and back, and struck him multiple times in the head with his forearm. § 87(2)(b) said that during the struggle, officers ordered him to stop moving, but he denied that he was moving on the ground or offering any resistance. § 87(2)(b) sustained a laceration above his right eye, which he alleged was a result of the force the officers used to effect his arrest. After being successfully handcuffed, § 87(2)(b) was brought out of the apartment. § 87(2)(b) refused medical treatment for his injury.

§ 87(2)(g)

Police Officer Desiderato testified that once the door of § 87(2)(b) was opened, § 87(2)(b) “rapidly” and “aggressively” approached him and Police Officer Browne, with his arms

raised to chest-level and closed fists, in what Police Officer Desiderato described as a “fighting-stance.” Police Officer Desiderato stated that he ordered § 87(2)(b) to stop multiple times; however, § 87(2)(b) would not comply with the command and continued to approach. Police Officer Desiderato stated that he feared for he and his partner’s safety, based upon the information he had received about a firearm inside the apartment and the possibility that § 87(2)(b) could have had the firearm on his person. Police Officer Desiderato grabbed § 87(2)(b) by the arms and walked him backwards into the apartment, where he and § 87(2)(b) fell to the floor. Police Officer Desiderato stated that either § 87(2)(b) tripped and he fell on top of him, or that he tripped and brought § 87(2)(b) down with him. His takedown of § 87(2)(b) was not intentional, and he and § 87(2)(b) fell together. Once § 87(2)(b) was on the floor, he was rolled onto his stomach but began “squirming,” resisting, and refusing to give the officers his hands. However, Police Officer Desiderato denied using any additional force or strikes to gain control of § 87(2)(b) and denied witnessing any other officer use additional force.

Police Officer Browne testified that when § 87(2)(b) opened the door with his fists raised, he and the other officers at the door immediately took him to the ground, handcuffed him, and brought him out of the apartment. They did this expediently because § 87(2)(b) was still hidden within the apartment with a firearm. Police Officer Browne denied striking § 87(2)(b) slamming his head against the ground, or putting his knee into his neck or back. He denied witnessing any other officer engage in the aforementioned actions. He stated that § 87(2)(b) sustained the injury above his right eye when his head hit the floor of the apartment following the takedown.

As mentioned above in the preceding section, Police Officer Parascandolo denied being present when officers first entered the apartment, denied witnessing the struggle between § 87(2)(b) and the officers who initially entered, and denied witnessing § 87(2)(b) handcuffing. Police Officer Parascandolo denied that he slammed § 87(2)(b) head against the floor, put his knee into § 87(2)(b) neck or back, or struck him multiple times in the head. Police Officer Parascandolo also did not witness any other officer engage in the alleged actions.

An officer may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise to protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. Among the factors an officer should consider in determining whether the use of force is reasonable are: a) The nature and severity of the crime/circumstances; b) Actions taken by the subject; c) Duration of the action; d) Immediacy of the perceived threat or harm to members of the service; e) Whether the subject is actively resisting custody; and f) Whether the subject is attempting to evade arrest by flight. (Patrol Guide Procedure No.: 221-01 (Board Review 14))

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations G, H, and J** be **unsubstantiated**.

Allegation K—Abuse of Authority: Police Officer Brad Parascandolo searched § 87(2)(b) in Staten Island.

Allegation L—Abuse of Authority: Police Officer Richard Browne searched § 87(2)(b) in Staten Island.

Police Officer Parascandolo stated that once § 87(2)(b) had been placed in handcuffs and removed from § 87(2)(b) he quickly looked into the living room and kitchen to determine if there were any other individuals within the apartment that had not been accounted for. Police Officer Parascandolo stated that neither he nor the other officer within the apartment opened any of the doors due to § 87(2)(b) being still hidden within the apartment, presumably with the firearm. Police Officer Parascandolo stated that he thought an ESU unit responded to the scene in order to extract § 87(2)(b) from within the apartment. A few minutes after the ESU unit arrived, § 87(2)(b) came out of the back bedroom and voluntarily surrendered himself to the officers, and was placed into custody without struggle or injury.

Police Officer Parascandolo stated that when § 87(2)(b) surrendered himself to the officers, he was no longer was in possession of the firearm he had seen in his waistband, and had changed into a different set of clothes. As such, Police Officer Parascandolo left to obtain a search warrant. After obtaining the warrant, Police Officer Parascandolo returned and, at approximately 6:00 p.m., conducted a search of the apartment. During the search, officers discovered crack cocaine, a black firearm, and credit cards belonging to the victim of the earlier armed robbery at § 87(2)(b).

Police Officer Browne's testimony generally corroborated Police Officer Parascandolo's, including the fact that officers "froze" the apartment while Police Officer Parascandolo obtained a search warrant and the fact that crack cocaine, a firearm and credit cards were found within the apartment during the execution of the warrant.

The investigation confirmed that search warrant § 87(2)(b) for § 87(2)(b) was signed by the Honorable § 87(2)(b).

An officer may search a premises under the authority of a valid search warrant. New York Criminal Procedural Law 690.05 (Board Review 19). As per Search Warrant § 87(2)(b) officers were authorized to search § 87(2)(b) (Board Review 20).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations K and L** be **exonerated**.

Squad: 14

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date